

# SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

**NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.**

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                   |                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                      |                                        |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------|------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------|
| 1. REQUISITION NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                   |                                                                                                                        | PAGE 1 OF                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                                                                                                                                      |                                        |
| 2. CONTRACT NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 3. AWARD/EFFECTIVE DATE           | 4. ORDER NUMBER                                                                                                        | 5. SOLICITATION NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | 6. SOLICITATION ISSUE DATE                                                                                                           |                                        |
| 7. FOR SOLICITATION INFORMATION CALL:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                   |                                                                                                                        | a. NAME                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                      | b. TELEPHONE NUMBER (No collect calls) |
| 9. ISSUED BY CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                   |                                                                                                                        | 10. THIS ACQUISITION IS <input type="checkbox"/> UNRESTRICTED OR <input type="checkbox"/> SET ASIDE: % FOR:<br><input type="checkbox"/> SMALL BUSINESS <input type="checkbox"/> WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS):<br><input type="checkbox"/> HUBZONE SMALL BUSINESS <input type="checkbox"/> ECONOMICALLY DISADVANTAGED <input type="checkbox"/> VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD:<br><input type="checkbox"/> SERVICE-DISABLED <input type="checkbox"/> 8(A) |                                                                                                                                      |                                        |
| 11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED<br><input type="checkbox"/> SEE SCHEDULE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                   | 12. DISCOUNT TERMS                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | 13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) <input type="checkbox"/> |                                        |
| 15. DELIVER TO CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                   | 16. ADMINISTERED BY CODE                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                      |                                        |
| 17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                   | 18a. PAYMENT WILL BE MADE BY CODE                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                      |                                        |
| TELEPHONE NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                   | 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED <input type="checkbox"/> SEE ADDENDUM |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                      |                                        |
| 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER <input type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                   | 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED <input type="checkbox"/> SEE ADDENDUM |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                      |                                        |
| 19. ITEM NUMBER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 20. SCHEDULE OF SUPPLIES/SERVICES |                                                                                                                        | 21. QUANTITY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 22. UNIT                                                                                                                             | 23. UNIT PRICE                         |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                   |                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                      |                                        |
| (Use Reverse and/or Attach Additional Sheets as Necessary)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                   |                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                      |                                        |
| 25. ACCOUNTING AND APPROPRIATION DATA                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                   |                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | 26. TOTAL AWARD AMOUNT (For Government Use Only)                                                                                     |                                        |
| <div style="display: flex; justify-content: space-between;"> <div style="width: 60%;"> <input type="checkbox"/> 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA<br/> <input type="checkbox"/> 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA<br/> <input type="checkbox"/> 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED </div> <div style="width: 35%;"> <input type="checkbox"/> 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: </div> </div> |                                   |                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                      |                                        |
| 30a. SIGNATURE OF OFFEROR/CONTRACTOR                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                   |                                                                                                                        | 31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                      |                                        |
| 30b. NAME AND TITLE OF SIGNER (Type or print)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                   | 30c. DATE SIGNED                                                                                                       | 31b. NAME OF CONTRACTING OFFICER (Type or print)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                      | 31c. DATE SIGNED                       |

## Continuation of Supplies or Services and Prices/Costs

### Additional Information/Notes

| Item | Supplies/Service                                                                                                                                                     | Quantity | Unit | Unit Price | Amount |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 0001 | Product Service Description: CADD SOLIS<br>INFUSION SYSTEM GRAY<br>Manufacturer's Part Number: 21-2111-0402-<br>51<br>Pricing Arrangement: Firm Fixed Price          | 15       | Each |            |        |
| 0002 | Product Service Description: POLE<br>MOUNT ADAPTER<br>Manufacturer's Part Number: 21-2135-25<br>Pricing Arrangement: Firm Fixed Price                                | 15       | Each |            |        |
| 0003 | Product Service Description: POLE<br>MOUNT BRACKET LOCKABLE<br>Manufacturer's Part Number: 21-6120-24<br>Pricing Arrangement: Firm Fixed Price                       | 15       | Each |            |        |
| 0004 | Product Service Description: LOCKBOX<br>CLEAR<br>Manufacturer's Part Number: 21-2188-25<br>Pricing Arrangement: Firm Fixed Price                                     | 15       | Each |            |        |
| 0005 | Product Service Description: MEDICATION<br>SAFETY SOFTWARE LICENCE - CAD<br>Manufacturer's Part Number: 21-2199-0402-<br>51<br>Pricing Arrangement: Firm Fixed Price | 15       | Each |            |        |
| 0006 | Product Service Description: VERSION<br>UPGRADE IMPLEMENTATION<br>Manufacturer's Part Number: 22-0028-005<br>Pricing Arrangement: Firm Fixed Price                   | 1        | Each |            |        |

## Continuation of Description

### Requirements

#### INFUSION PUMP ANALGESIC

0001

Product Service Code : 6515

North American Industry Classification System (NAICS) : 339112

0002

Product Service Code : 6515

North American Industry Classification System (NAICS) : 339112

0003

Product Service Code : 6515

North American Industry Classification System (NAICS) : 339112

0004

Product Service Code : 6515

North American Industry Classification System (NAICS) : 339112

0005

Product Service Code : 6515

North American Industry Classification System (NAICS) : 339112

0006

Product Service Code : 6515

North American Industry Classification System (NAICS) : 339112

## Continuation of Inspection and Acceptance

### Overall Contract Inspection/Acceptance Locations

|      |                                                                                                                                                                                                                                                                                                                   |
|------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Please contact Jerry Mata.</p> <p>DoDAAC: HT0848<br/>CountryCode: USA</p> <p>AMC BEAUMONT BLISS - PB<br/>18511 HIGHLANDER MEDICS STREET, FORT BLISS TX 79918<br/>FORT BLISS, TX 79918<br/>UNITED STATES</p> <p>Jerry Mata</p> |
| 0002 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Please contact Jerry Mata.</p> <p>DoDAAC: HT0788<br/>CountryCode: USA</p> <p>ACH EVANS CARSON - PB<br/>USA MEDICAL DEPT ACTV, 1650 COCHRANE CIR<br/>FORT CARSON, CO 80913-4604<br/>UNITED STATES</p> <p>Jerry Mata</p>        |
| 0003 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Please contact Jerry Mata.</p>                                                                                                                                                                                                |

|      |                                                                                                                                                                                                                                                                                                             |
|------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|      | <p>DoDAAC: HT0788<br/>CountryCode: USA</p> <p>ACH EVANS CARSON - PB<br/>USA MEDICAL DEPT ACTV, 1650 COCHRANE CIR<br/>FORT CARSON, CO 80913-4604<br/>UNITED STATES</p> <p>Jerry Mata</p>                                                                                                                     |
| 0004 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Please contact Jerry Mata.</p> <p>DoDAAC: HT0788<br/>CountryCode: USA</p> <p>ACH EVANS CARSON - PB<br/>USA MEDICAL DEPT ACTV, 1650 COCHRANE CIR<br/>FORT CARSON, CO 80913-4604<br/>UNITED STATES</p> <p>Jerry Mata</p>  |
| 0005 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Please contact Jerry Mata.</p> <p>DoDAAC: HT0788<br/>CountryCode: USA</p> <p>ACH EVANS CARSON - PB<br/>USA MEDICAL DEPT ACTV, 1650 COCHRANE CIR<br/>FORT CARSON, CO 80913-4604<br/>UNITED STATES</p> <p>Jerry Matat</p> |

|      |                                                                                                                                                                                                                                                                                                            |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0006 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: Please contact Jerry Mata.</p> <p>DoDAAC: HT0788<br/>CountryCode: USA</p> <p>ACH EVANS CARSON - PB<br/>USA MEDICAL DEPT ACTV, 1650 COCHRANE CIR<br/>FORT CARSON, CO 80913-4604<br/>UNITED STATES</p> <p>Jerry Mata</p> |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

## Continuation of Deliveries or Performance

|      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001 | <p><b>Delivery Schedule</b><br/>Delivery On Or Before<br/>Delivery Date 15 Jun 2026<br/><b>Quantity</b> 15 Each</p> <p><b>Address and POC</b><br/>Ship To<br/>DoDAAC: HT0788<br/>CountryCode: USA<br/>ACH EVANS CARSON - PB<br/>USA MEDICAL DEPT ACTV, 1650 COCHRANE CIR FORT CARSON, CO 80913-4604 UNITED STATES</p> <p>Jerry A. Mata</p> <p><b>Special Handling/Notes</b><br/>FoB Details</p> <p>Party to Pay Transportation Cost: Contractor</p> <p>Point Type: Destination</p> |
| 0002 | <p><b>Delivery Schedule</b><br/>Delivery On Or Before<br/>Delivery Date 15 Jun 2026<br/><b>Quantity</b> 15 Each</p> <p><b>Address and POC</b><br/>Ship To<br/>DoDAAC: HT0848<br/>CountryCode: USA<br/>AMC BEAUMONT BLISS - PB<br/>18511 HIGHLANDER MEDICS STREET, FORT BLISS TX 79918 FORT BLISS, TX 79918 UNITED STATES</p>                                                                                                                                                       |

|      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|      | <p>Jerry A. Mata</p> <p><b>Special Handling/Notes</b><br/>FoB Details</p> <p>Party to Pay Transportation Cost: Contractor</p> <p>Point Type: Destination</p>                                                                                                                                                                                                                                                                                                                       |
| 0003 | <p><b>Delivery Schedule</b><br/>Delivery On Or Before<br/>Delivery Date 15 Jun 2026<br/><b>Quantity</b> 15 Each</p> <p><b>Address and POC</b><br/>Ship To<br/>DoDAAC: HT0788<br/>CountryCode: USA<br/>ACH EVANS CARSON - PB<br/>USA MEDICAL DEPT ACTV, 1650 COCHRANE CIR FORT CARSON, CO 80913-4604 UNITED STATES</p> <p>Jerry A. Mata</p> <p><b>Special Handling/Notes</b><br/>FoB Details</p> <p>Party to Pay Transportation Cost: Contractor</p> <p>Point Type: Destination</p> |
| 0004 | <p><b>Delivery Schedule</b><br/>Delivery On Or Before<br/>Delivery Date 15 Jun 2026<br/><b>Quantity</b> 15 Each</p>                                                                                                                                                                                                                                                                                                                                                                |



|      |                                                                                                                                                                                                                                                                                                                                                                                                 |
|------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|      | <p><b>Address and POC</b><br/>Ship To<br/>DoDAAC: HT0788<br/>CountryCode: USA<br/>ACH EVANS CARSON - PB<br/>USA MEDICAL DEPT ACTV, 1650 COCHRANE CIR FORT CARSON, CO 80913-4604 UNITED STATES</p> <p>Jerry A. Mata</p> <p><b>Special Handling/Notes</b><br/>FoB Details</p> <p>Party to Pay Transportation Cost: Contractor</p> <p>Point Type: Destination</p>                                  |
| 0005 | <p><b>Delivery Schedule</b><br/>Delivery On Or Before<br/>Delivery Date 15 Jun 2026<br/><b>Quantity</b> 15 Each</p> <p><b>Address and POC</b><br/>Ship To<br/>DoDAAC: HT0788<br/>CountryCode: USA<br/>ACH EVANS CARSON - PB<br/>USA MEDICAL DEPT ACTV, 1650 COCHRANE CIR FORT CARSON, CO 80913-4604 UNITED STATES</p> <p>Jerry A. Mata</p> <p><b>Special Handling/Notes</b><br/>FoB Details</p> |

|      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|      | <p>Party to Pay Transportation Cost: Contractor</p> <p>Point Type: Destination</p>                                                                                                                                                                                                                                                                                                                                                                                                |
| 0006 | <p><b>Delivery Schedule</b><br/>Delivery On Or Before<br/>Delivery Date 15 Jun 2026<br/><b>Quantity</b> 1 Each</p> <p><b>Address and POC</b><br/>Ship To<br/>DoDAAC: HT0788<br/>CountryCode: USA<br/>ACH EVANS CARSON - PB<br/>USA MEDICAL DEPT ACTV, 1650 COCHRANE CIR FORT CARSON, CO 80913-4604 UNITED STATES</p> <p>Jerry A. Mata</p> <p><b>Special Handling/Notes</b><br/>FoB Details</p> <p>Party to Pay Transportation Cost: Contractor</p> <p>Point Type: Destination</p> |

## Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                                                                  | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.                                                                                    | 2017-01        |                     |                          |
| 52.209-6  | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038) | 2026-02        |                     |                          |
| 52.212-4  | Terms and Conditions- Commercial Products and Commercial Services. (Deviation 2026-O0038)                                                                              | 2026-02        |                     |                          |
| 52.219-6  | Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)                                                                                                       | 2026-02        |                     |                          |
| 52.222-19 | Child Labor-Cooperation with Authorities and Remedies. (Deviation 2026-O0038)                                                                                          | 2026-03        |                     |                          |
| 52.222-36 | Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)                                                                                                | 2026-02        |                     |                          |
| 52.222-50 | Combating Trafficking in Persons. (Deviation 2026-O0038)                                                                                                               | 2026-02        |                     |                          |

|           |                                                                                             |         |              |         |
|-----------|---------------------------------------------------------------------------------------------|---------|--------------|---------|
| 52.225-3  | Buy American-Free Trade Agreements-Israeli Trade Act. (Deviation 2026-O0038)                | 2026-02 |              |         |
| 52.225-3  | Buy American-Free Trade Agreements-Israeli Trade Act. (Deviation 2026-O0038) (Alternate II) | 2026-02 | Alternate II | 2026-02 |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving.                        | 2024-05 |              |         |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors.                            | 2023-03 |              |         |
| 52.233-3  | Protest after Award. (Deviation 2026-O0038)                                                 | 2026-02 |              |         |
| 52.233-4  | Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)                         | 2026-02 |              |         |

#### DFARS Clauses Incorporated by Reference

| Number       | Title                                                          | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|----------------------------------------------------------------|----------------|---------------------|--------------------------|
| 252.203-7000 | Requirements Relating to Compensation of Former DoD Officials. | 2011-09        |                     |                          |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights.       | 2022-12        |                     |                          |

|              |                                                                                                          |         |                             |         |
|--------------|----------------------------------------------------------------------------------------------------------|---------|-----------------------------|---------|
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1) | 2024-05 | Deviation<br>2024-<br>O0013 | 2024-05 |
| 252.204-7018 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.              | 2023-01 |                             |         |
| 252.223-7008 | Prohibition of Hexavalent Chromium.                                                                      | 2023-01 |                             |         |
| 252.225-7001 | Buy American and Balance of Payments Program.                                                            | 2024-02 |                             |         |
| 252.225-7060 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.                          | 2023-06 |                             |         |
| 252.232-7003 | Electronic Submission of Payment Requests and Receiving Reports.                                         | 2018-12 |                             |         |
| 252.232-7010 | Levies on Contract Payments.                                                                             | 2006-12 |                             |         |
| 252.247-7023 | Transportation of Supplies by Sea.                                                                       | 2024-10 |                             |         |

#### DFARS Clauses Incorporated by Full Text

| Number       | Title                                    | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|------------------------------------------|----------------|---------------------|--------------------------|
| 252.232-7006 | Wide Area WorkFlow Payment Instructions. | 2023-01        |                     |                          |

## WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

#### Invoice & Receiving Report

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

N/A

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations

of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| Field Name in WAWF        | Data to be entered in WAWF |
|---------------------------|----------------------------|
| Pay Official DoDAAC       | HO090                      |
| Issue By DoDAAC           | W81K00                     |
| Admin DoDAAC              | W81K00                     |
| Inspect By DoDAAC         | HT0788                     |
| Ship To Code              | HT0788                     |
| Ship From Code            | _____                      |
| Mark For Code             | _____                      |
| Service Approver (DoDAAC) | _____                      |
| Service Acceptor (DoDAAC) | _____                      |
| Accept at Other DoDAAC    | _____                      |
| LPO DoDAAC                | _____                      |
| DCAA Auditor DoDAAC       | _____                      |
| Other DoDAAC(s)           | _____                      |

(\*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(\*\*Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.



(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Jerry A. Mata at [jerry.a.mata.civ@health.mil](mailto:jerry.a.mata.civ@health.mil)

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

## **Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services**

### **ADDENDUM 52.212-4**

Paragraph 52.212-4(w) is hereby added:

(w) The non-FAR Part 12 discretionary FAR and DFARS clauses included herein are incorporated into

this contract either by reference or in full text. If incorporated by reference, see clause 52.252-2 herein for locations where full text can be found.

(End of Addendum

\*\*\* END OF NARRATIVE \*\*\*

\*\*\* END OF NARRATIVE \*\*\*

## Addendum to Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                        | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|----------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.204-91 | Contractor Identification.<br>(Deviation 2026-O0038)                                         | 2026-02        |                     |                          |
| 52.209-10 | Prohibition on Contracting With<br>Inverted Domestic Corporations.<br>(Deviation 2026-O0038) | 2026-02        |                     |                          |
| 52.222-3  | Convict Labor. (Deviation 2026-<br>O0038)                                                    | 2026-02        |                     |                          |
| 52.223-23 | Sustainable Products. (Deviation<br>2026-O0038)                                              | 2026-02        |                     |                          |
| 52.240-91 | Security Prohibitions and<br>Exclusions. (Deviation 2026-<br>O0038)                          | 2026-02        |                     |                          |
| 52.244-6  | Subcontracts for Commercial<br>Products and Commercial<br>Services. (Deviation 2026-O0038)   | 2026-04        |                     |                          |

### DFARS Clauses Incorporated by Reference

| Number       | Title                                            | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|--------------------------------------------------|----------------|---------------------|--------------------------|
| 252.225-7002 | Qualifying Country Sources as<br>Subcontractors. | 2022-03        |                     |                          |

## FAR Clauses Incorporated by Full Text

| Number   | Title                              | Effective Date | Alternate Deviation | Variation Effective Date |
|----------|------------------------------------|----------------|---------------------|--------------------------|
| 52.252-2 | Clauses Incorporated by Reference. | 1998-02        |                     |                          |

## Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

\_\_\_\_\_ <https://www.acquisition.gov> \_\_\_\_\_[Insert one or more Internet addresses]

(End of clause)

## List of Contract Documents, Exhibits, or Attachments

### Attachment 1:

CADD-Solis Ambulatory Infusion Pumps with lock boxes, extended description follows:

Salient Requirements:

Seller must provide 15 each infusion Pumps as per characteristics listed below.

Seller must provide 15 each Lock boxes which can store infusion pump and medication bag and provide protection against unauthorized access and theft.

Seller must provide system that has been approved by the Food and Drug Administration (FDA) and must not have any unresolved FDA recalls.

Seller shall provide Infusion Pumps, Patient Controlled Analgesics capable of allowing patients the ability to administering medication.

Seller shall provide device with delivery mode of epidural and intravenous.

Seller shall provide device with pump mechanism of linear peristaltic.

Seller shall provide device within its life expectancy. Device identified for discontinuation within the device's life expectancy will be deemed non-acceptable.

Seller shall provide device with indicators, alarms and dose error reduction.

Seller shall provide device with stream occlusion, air in line, system malfunction, empty reservoir, low battery alarm/ indicator.

Seller shall provide device with weight within the range of at least 2-3 pounds for ease of use and transport.

Seller shall provide device with a flow range of at least 0-100 Continuous/0-500 Bolus and be able to be adjusted by at least 0.05ml/hr. and have a reservoir that is a proprietary cassette/ IV bag.

Seller shall provide a device capable of providing event log.

Seller shall provide Pump with capabilities key and/or security code.

Seller shall provide pump must be compatible with central lines.

Seller shall provide two copies of operator/user manual.

Seller shall provide reprocessing instructions.

Seller must be an authorized dealer, distributor, or reseller for the proposed system.

Seller must provide a warranty for the system in accordance with Original Equipment Manufacturer (OEM) guidance.

\*\*\* END OF NARRATIVE \*\*\*

## Solicitation Provisions

### FAR Provisions Incorporated by Reference

| Number   | Title                                                                                         | Effective Date | Alternate Deviation | Variation Effective Date |
|----------|-----------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.212-1 | Instructions to Offerors- Commercial Products and Commercial Services. (Deviation 2026-O0038) | 2026-02        |                     |                          |

### DFARS Provisions Incorporated by Reference

| Number       | Title                                                                                           | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|-------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 252.203-7005 | Representation Relating to Compensation of Former DoD Officials.                                | 2022-09        |                     |                          |
| 252.204-7024 | Notice on the Use of the Supplier Performance Risk System.                                      | 2023-03        |                     |                          |
| 252.225-7059 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region- Representation. | 2023-06        |                     |                          |

### DFARS Provisions Incorporated by Full Text

| Number | Title | Effective Date | Alternate Deviation | Variation Effective Date |
|--------|-------|----------------|---------------------|--------------------------|
|--------|-------|----------------|---------------------|--------------------------|

|              |                                                                                |         |
|--------------|--------------------------------------------------------------------------------|---------|
| 252.204-7016 | Covered Defense<br>Telecommunications Equipment<br>or Services-Representation. | 2019-12 |
|--------------|--------------------------------------------------------------------------------|---------|

#### COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES- REPRESENTATION (DEC 2019)

(a) Definitions. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) Representation. The Offeror represents that it ☐ does, ☒ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

|              |                                                                                                                     |         |
|--------------|---------------------------------------------------------------------------------------------------------------------|---------|
| 252.204-7017 | Prohibition on the Acquisition of<br>Covered Defense<br>Telecommunications Equipment<br>or Services-Representation. | 2021-05 |
|--------------|---------------------------------------------------------------------------------------------------------------------|---------|

#### PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has



represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment

manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

|              |                                                           |         |
|--------------|-----------------------------------------------------------|---------|
| 252.225-7000 | Buy American--Balance of<br>Payments Program Certificate. | 2024-02 |
|--------------|-----------------------------------------------------------|---------|

#### BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) Definitions. "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) Evaluation. The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of

the Buy American statute or the Balance of Payments Program.

(c) Certifications and identification of country of origin.

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

| Line Item Number | Country of Origin |
|------------------|-------------------|
| _____            | _____             |
| _____            | _____             |
| _____            | _____             |

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

| Line Item Number | Country of Origin (If known) | Exceeds 55% Domestic Content (yes/no) |
|------------------|------------------------------|---------------------------------------|
| _____            | _____                        | _____                                 |
| _____            | _____                        | _____                                 |
| _____            | _____                        | _____                                 |

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number \_\_\_\_\_

[List as necessary]

(End of provision)

## **Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services**

### **Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services**

ELECTRONIC SUBMISSION: Offerors shall submit electronic quotes in response to this solicitation to Mr. Darryl O. Bryant at darryl.o.bryant.

civ@health.mil The quotation must arrive by the time specified in block 8 of the solicitation.

Offerors shall ensure that the SF 1449, Blocks 17a and

30a - c, are completed in their entirety, and a copy of your Certifications and Representation is submitted. The quotation shall also have a title page

identifying the offeror, the full address, phone and facsimile numbers, points of contact (POCs) of the offeror, the solicitation number, and the

quotation contents. Offerors must send an e-mail to Mr. Darryl O. Bryant at darryl.o.bryant.

civ@health.mil to verify receipt of quote. Please note that

large files can be stripped from emails based on the amount of data transmission. Files, larger than 20MB, may need to be transmitted in separate

emails. All emails, regardless of size, need to be received by the government server, by the stated date and time. The Government will not be

responsible for any failure of transmission or receipt of the quotation, or any failure of the offeror to verify receipt of the emailed quotation. All

quotes submitted after the deadline will be considered untimely and ineligible for award. 2.

QUOTATION CONTENT REQUIREMENTS: Offeror

shall submit a quotation in accordance with the following format: a. TECHNICAL CAPABILITY

(Factor 1): Explain in detail how the proposed

items will meet the requirement of the products as specified. Offeror shall demonstrate that the products proposed complies with the requirement. b.

PRICING (Factor 2): Offeror shall complete the pricing for each of the contract line items in the Bid schedule. Offerors shall be registered and current

in the System for Award Management (SAM) and shall not have any Active Exclusions listed within SAM to be eligible for award. The SAM internet

web site is <https://sam.gov>. Quotes are due by 06 May 2026 @ 4:00 PM, Central Standard Time.

\*\*\* END OF NARRATIVE \*\*\*

\*\*\* END OF NARRATIVE \*\*\*

**0001**

Point of Contact: MR. ABRAHAM CADENA 915-742-0133

**0002**

Point of Contact: MR. ABRAHAM CADENA 915-742-0133

**0003**

Point of Contact: MR. ABRAHAM CADENA 915-742-0133

**0004**

Point of Contact: MR. ABRAHAM CADENA 915-742-0133

**0005**

Point of Contact: MR. ABRAHAM CADENA 915-742-0133

**0006**

Point of Contact: MR. ABRAHAM CADENA 915-742-0133

## **Addendum to Evaluation - Commercial Product and Commercial Services**

### **ADDENDUM TO 52.212-2 Addendum to Evaluation - Commercial Product and Commercial Services**

Paragraph (a) is hereby replaced with the following:

#### **1. Evaluation Process.**

(a) The Government will award a single contract resulting from this solicitation to the responsible contractor whose quote, conforms to the solicitation based on Technically Capability and Price. Award will be made on an all-or-none basis.

Factor 1: Technical Factor

2: Price

Award will be on an all or none basis. The following adjectival ratings will be used in evaluating the offeror's quote:

Factor 1 - Technical Capability: Technical capability ratings reflect the Government's confidence in the offeror's product, as demonstrated in its submission, to meet the requirement set forth in the solicitation. The Government will make an independent judgment of the acceptability. To receive consideration for award, a rating of no less than Acceptable must be achieved in technical acceptability.

ACCEPTABLE - To receive this rating, the offeror's products/solution must meet the required features and this requirement as stated in the solicitation.

UNACCEPTABLE - An unacceptable rating will be assessed on any offeror that demonstrates any of the following:

Failure to meet the Technical Capabilities set forth in the solicitation.

Failure to provide sufficient detail for the Government to determine whether the items satisfactorily meet the requirements of this solicitation.



Factor 2 - Price: Quotations must include a proposed price for each Contract Line Item Number (CLIN). Offerors' price quotes will be evaluated to determine if the price is fair and reasonable.

(a) Offeror's pricing must be determined to be fair and reasonable in order to be eligible for an award.

(b) To be eligible for award, offerors must be properly registered in the System for Award Management (SAM).

Offerors may obtain information on SAM and annual confirmation requirements by viewing [www.sam.gov](http://www.sam.gov).

Written notice of award or acceptance of a mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding order without further action by either party.

Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

Evaluation Process: Quote will be evaluated on its technical capability and price. The award decision will be based on an acceptable technical capability rating and fair and reasonable pricing. Offerors quote must be determined technically acceptable in order to be considered for award.

Note Section C of 52.204-26 must be returned or verify 52.204-26 has been completed with online Reps and Certs to be eligible for award.

\*\*\* END OF NARRATIVE \*\*\*

\*\*\* END OF NARRATIVE \*\*\*

## Addendum to Solicitation Provisions

### FAR Provisions Incorporated by Reference

| Number    | Title                                                                                                                           | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|---------------------------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.203-18 | Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. | 2017-01        |                     |                          |
| 52.214-34 | Submission of Offers in the English Language.                                                                                   | 1991-04        |                     |                          |
| 52.214-35 | Submission of Offers in U.S. Currency.                                                                                          | 1991-04        |                     |                          |
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)                                 | 2026-02        |                     |                          |

### FAR Provisions Incorporated by Full Text

| Number    | Title                                          | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|------------------------------------------------|----------------|---------------------|--------------------------|
| 52.204-90 | Offeror Identification. (Deviation 2026-O0038) | 2026-02        |                     |                          |

Offeror Identification (Feb 2026) (Deviation 2026-O0038)

If the Offeror will not have an active Federal Government contracts registration in the System for Award Management (<https://www.sam.gov>) when submitting its offer, it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.

(a) Definitions. As used in this provision-

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

Common parent means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer Identification Number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(b) Unique entity identifier (UEI).

(1) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(2) If the Offeror does not have a UEI, it shall go to <https://www.sam.gov> to obtain one. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) Taxpayer identification. The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

☐ TIN: \_\_\_\_\_;

☐ TIN has been applied for; or

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government; or

☐ Offeror is an agency or instrumentality of the Federal Government.

(2) Type of organization.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

- ☐ Corporate entity (tax-exempt);
- ☐ Government entity (Federal, State, or local);
- ☐ Foreign government;
- ☐ International organization per 26 CFR 1.6049-4; or
- ☐ Other.

(3) Common parent.

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or

☐ Name and TIN of common parent:

Name: \_\_\_\_\_

TIN: \_\_\_\_\_

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)).

(d) Commercial and Government Entity (CAGE) code.

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word "CAGE" before the code. The Offeror may obtain a CAGE code as indicated in the following table.

| If the Offeror is...                                                                                                                                        | Then...                                                                                             |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------|
| Located in the United States or its outlying areas                                                                                                          | Submit a request to the DLA CAGE Branch via <a href="https://cage.dla.mil">https://cage.dla.mil</a> |
| Located outside the United States and its outlying areas and its country is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation | Contact the                                                                                         |

appropriate National Codification Bureau ( <https://www.nato.int/structur/ac/135/about/contacts>)

Located outside the United States and its outlying areas and its country is not a member of NATO or a sponsored nation Contact the NATO Support and Procurement Agency (NSPA) ( <https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx>)

(2) The Offeror shall provide the CAGE code and legal business name (Do not use a "doing business as" name) for-

(i) Its immediate owner(s), if any;

(ii) Its highest-level owner, if any; and

(iii) Any predecessor(s), or predecessor of an Offeror's predecessor, that held a Federal contract or grant within the last three years.

| Owner Type          | CAGE Code | Legal Business Name |
|---------------------|-----------|---------------------|
| Immediate owner     | _____     | _____               |
| Highest-level owner | _____     | _____               |
| Predecessor*        | _____     | _____               |

\* Predecessor CAGE code may be marked "Unknown."

(3) If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)

|          |                                                                                                                  |         |
|----------|------------------------------------------------------------------------------------------------------------------|---------|
| 52.209-2 | Prohibition on Contracting With<br>Inverted Domestic Corporations-<br>Representation. (Deviation 2026-<br>O0038) | 2026-02 |
|----------|------------------------------------------------------------------------------------------------------------------|---------|

Prohibition on Contracting with Inverted Domestic Corporations-Representation (Feb 2026)  
(Deviation 2026-O0038)

(a) Definitions. As used in this clause-

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) Representation. The Offeror represents that-

(1) It ☐ is, ☒ is not an inverted domestic corporation; and

(2) It ☐ is, ☒ is not a subsidiary of an inverted domestic corporation.

(End of provision)

|          |                                                                                                    |         |
|----------|----------------------------------------------------------------------------------------------------|---------|
| 52.225-4 | Buy American-Free Trade<br>Agreements-Israeli Trade Act<br>Certificate. (Deviation 2026-<br>O0038) | 2026-02 |
|----------|----------------------------------------------------------------------------------------------------|---------|

Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Feb 2026) (Deviation 2026-O0038)

(a)



(1) The Offeror certifies that each end product, except those listed in paragraph (b) or (c)(1) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(2) of this provision contains a critical component.

(2) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(b) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

| Line item No. | Country of origin |
|---------------|-------------------|
| _____         | _____             |
| _____         | _____             |
| _____         | _____             |

[List as necessary]

(c)

(1) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (b) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Other Foreign End Products:

| Line Item No. | Country of origin |
|---------------|-------------------|
| _____         | _____             |

\_\_\_\_\_  
\_\_\_\_\_

[List as necessary]

(2) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. \_\_\_\_\_

[List as necessary]

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of provision)

|          |                                                                                        |         |                 |         |
|----------|----------------------------------------------------------------------------------------|---------|-----------------|---------|
| 52.225-4 | Buy American-Free Trade<br>Agreements-Israeli Trade Act<br>Certificate. (Alternate II) | 2026-02 | Alternate<br>II | 2025-01 |
|----------|----------------------------------------------------------------------------------------|---------|-----------------|---------|

Alternate II (Jan 2025). As prescribed in 25.601(b)(2)(ii), substitute the following paragraph (b) for paragraph (b) of the basic provision:

(b) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act".

Israeli End Products:

Line Item No.

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

[List as necessary]

|          |                            |         |
|----------|----------------------------|---------|
| 52.252-1 | Solicitation Provisions    | 1998-02 |
|          | Incorporated by Reference. |         |

#### Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

\_\_\_\_<https://www.acquisition.gov>\_\_\_\_[Insert one or more Internet addresses]

(End of provision)